

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Cody	Team: Team # 3	CCRB Case #: 201101926	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 02/06/2011 1:00 AM	Location of Incident: § 87(2)(b)	Precinct: 41	18 Mo. SOL 8/6/2012	EO SOL 8/6/2012	
Date/Time CV Reported Tue, 02/15/2011 9:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 02/15/2011 9:57 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. CPT Deodat Urprasad	00000	914030	PBBX
2. Officers			
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carlos Cruz	03361	948830	PBBX
2. POM Robert Travis	07151	949741	PBBX
3. POF Vivian Gavilanes	06306	949012	PBBX

Officer(s)	Allegation	Investigator Recommendation
A. CPT Deodat Urprasad	Abuse: Cpt. Deodat Urprasad supervised the entry and search of § 87(2)(b), in the Bronx.	
B. Officers	Force: Officers used physical force against § 87(2)(b)	
C. An officer	Force: An officer used pepper spray against § 87(2)(b)	
D. Officers	Force: Officers used physical force against an individual.	
E. An officer	Force: An officer used physical force against § 87(2)(b)	
F. An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	
G. An officer	Force: An officer used a chokehold against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
H. An officer	Force: An officer used physical force against § 87(2)(b)	

Case Summary

On February 15, 2011, § 87(2)(b) filed this complaint on behalf of a number of individuals with the CCRB via phone. She was not present for this incident. On February 6, 2011, at approximately 1:00am, three of § 87(2)(b) children were at § 87(2)(b) sister-in-law's house located at § 87(2)(b) in the Bronx. § 87(2)(b) sister-in-law is § 87(2)(b) and her brother is § 87(2)(b) (who was also present). In total, there were up to 18 people in the apartment, including friends of the family. Numerous police officers came to the apartment and informed § 87(2)(b) that the guests inside had to leave. § 87(2)(b) told the officers that her guests consisted of children including her nieces and nephews. PO1, a white male, in his 50's, white shirt, a captain, named "Urprasab" identified by the CCRB as Capt. Deodat Urprasad of Patrol Borough Bronx, then instructed his officers to remove their badges and enter the apartment (Allegation A). § 87(2)(b) stated that she obtained the captain's name from another officer when she later went to the precinct regarding this incident.

While inside of the house, the officers grabbed § 87(2)(b) and threw him in the closet and pepper sprayed him (Allegations B and C). The officers also stomped on and kicked a mentally disabled individual in the home who was already on the floor (Allegation D). This individual was about § 87(2)(b); § 87(2)(b) did not know her name.

Many of the individuals who were in § 87(2)(b) and § 87(2)(b) home were later brought to the 41st Precinct station house. There, § 87(2)(b) a mentally disabled family friend of § 87(2)(b) and § 87(2)(b) was pushed into a pole by PO2 (who § 87(2)(b) later said was named "Cruz") an unidentified officer (Allegation E). PO2 also said to § 87(2)(b) "Are you mad? I don't give a fuck. I will bust your face into this wall" (Allegation F). § 87(2)(b) later went to the hospital as a result of this encounter. In addition, § 87(2)(b) was "choked" and kicked in her back by an unidentified officer at the 41st Precinct station house (Allegation G and H).

Some of the children in § 87(2)(b) and § 87(2)(b) home were taken by Administration for Children's Services. § 87(2)(b) was involved in a court hearing where the judge decided to release the children from ACS's custody under the condition that § 87(2)(b) does not file a lawsuit against the city.

§ 87(2)(b) told § 87(2)(b) that PO2's name was "Cruz." While an Officer Carlos Cruz was one of the arresting officers during this incident, there are two officers in Patrol Borough Bronx with the name of Officer Carlos Cruz. § 87(2)(g)

§ 87(2)(b) also said that § 87(2)(b) told her that an officer named "Gavilanes" was inside the apartment. § 87(2)(g)

There were eight arrests at the residence that day on record, and all the arrestees were charged with § 87(2)(b)

§ 87(2)(b) The arresting officers were Officer Carlos Cruz and Officer Robert Travis, both of Patrol Borough Bronx. § 87(2)(g). It appears from the arrest reports that this incident started while officers were conducting a vertical inside the building when some of the civilians fled into § 87(2)(b) when they observed the officers. § 87(2)(g)

Due to the number of civilians involved in this incident, § 87(2)(b) indicated that she would arrange two trips for the civilians involved to the CCRB for interviews, one on March 3, 2011, and one on March 4, 2011. § 87(2)(b) came to the CCRB with four other civilians on March 3, 2011 (there were also a number of children present who were too young to actually be interviewed). These civilians were § 87(2)(b) and § 87(2)(b). While some of victims were being interviewed, § 87(2)(b) indicated to Supervising Investigator Vanessa Rosen that she did not want to pursue a CCRB complaint unless the CCRB could provide protection for her family from the officers and help her family relocate to another residence. SI Rosen explained that the CCRB did not provide relocation services and could not offer the type of “protection” § 87(2)(b) was seeking. § 87(2)(b) then went to each interview room and indicated to the other civilians to stop their interviews, which they all did. § 87(2)(b) collected the civilians giving statements and left saying she did not want to pursue a complaint. She did not specifically withdraw her complaint saying that if they managed to move to a different residence they might try and pursue the complaint if they no longer had to fear retaliation from the officers. It was explained repeatedly to § 87(2)(b) and her family that retaliation is extremely rare and a very serious allegation that would be investigated by IAB. On March 4, 2011, § 87(2)(b) and the other civilians she said she was going to bring to the CCRB did not attend their scheduled appointment and none of them called to cancel or reschedule. On March 11, 2011, § 87(2)(b) was contacted and she indicated that nobody who was involved in this incident wanted to pursue a CCRB complaint at this time.

§ 87(2)(g)

Team: _____

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Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date